

**CHAPTER 44.**

An Act to make provision with respect to the remuneration of persons employed in connection with the mechanical transport of goods by road, and with respect to the making of recommendations and reports, and the settlement of disputes, relating to matters affecting such transport.

A.D. 1938.

[13th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

**REGULATION OF REMUNERATION OF WORKERS
EMPLOYED BY PUBLIC CARRIERS AND LIMITED
CARRIERS IN CONNECTION WITH THE MECHANICAL
TRANSPORT OF GOODS BY ROAD.**

1.—(1) For the purpose of regulating the remuneration of workers employed upon road haulage work to which this Part of this Act applies, there shall be established by the Minister of Labour (hereinafter referred to as "the Minister") the following boards :—

Constitution
of Central
Board and
of area
boards.

- (a) a board (hereinafter referred to as "the Central Board") for Great Britain to be called the Road Haulage Central Wages Board; and

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PART I.

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- (b) boards (hereinafter referred to as “ area boards ”) of which there shall be one for Scotland to be called the Scottish Road Haulage Area Wages Board, and one for each of the areas in England hereinafter mentioned to be called, respectively, the Road Haulage Area Wages Board for the area for which the board is established,

and the provisions of the First Schedule to this Act shall have effect with respect to the constitution and proceedings of the Central Board and of the area boards.

(2) The work to which this Part of this Act applies is road haulage work in connection with any goods vehicle specified in an A licence or a B licence granted under the Road and Rail Traffic Act, 1933 :

23 & 24
Geo. 5. c. 53.

Provided that this Part of this Act shall not apply to work for which a minimum rate of wages has been fixed by or under any other enactment, or to the work of persons in the employment of any railway company constituted under the Railways Act, 1921, whose remuneration falls to be determined by machinery established by agreement between such companies and the Railway Trade Unions.

11 & 12
Geo. 5. c. 55.

(3) The areas in England for each of which an area board is to be established shall be the areas specified in the First Schedule to the Road and Rail Traffic Act, 1933, as originally enacted :

Provided that the Minister may, after consultation with the Central Board and any area board appearing to him to be concerned, by order alter such areas in England, either by combining two or more areas or otherwise, and any such order may contain such consequential and other provisions as may be necessary for constituting, re-constituting, or dissolving, the area board for any area thereby affected.

Functions
of Central
Board and
of area
boards.

2.—(1) Subject to and in accordance with the provisions of this Act, the Central Board shall have power—

- (a) to submit to the Minister proposals for fixing the remuneration to be paid to any road haulage workers in respect of any road haulage work to which this Part of this Act applies;

- (b) to make such recommendations as the Board thinks fit to any government department with respect to safety on the roads, the health and comfort of workers employed on work to which this Part of this Act applies, and any other matter affecting the efficiency of, and conditions of work in connection with, the transport of goods in or on vehicles for which A licences or B licences are granted under the Road and Rail Traffic Act, 1933; and
- (c) to consider and report upon any question referred to the Board by the Minister with reference to any of the matters aforesaid :

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Provided that, before exercising its powers under paragraph (a) of this subsection, the Board shall transmit a draft of its proposals to the area board for every area thereby affected, and the procedure in relation thereto shall be in accordance with the provisions of the Second Schedule to this Act.

(2) The power of the Central Board under the said paragraph (a) to submit proposals for fixing the remuneration to be paid to any workers shall include power to submit proposals for fixing holiday remuneration and for requiring such remuneration to be paid to them in addition to the remuneration payable for the road haulage work actually done by them.

(3) In making proposals for fixing remuneration under this Part of this Act, the Board shall have regard to the various conditions of service of workers employed on road haulage work and the varying conditions under which and circumstances in which such work is performed and may frame its proposals accordingly, and without prejudice to the generality of the provisions of the said paragraph (a) empowering the Board so to do, the Board shall, in particular, have power to specify the time during which a worker must be employed on road haulage work to which this Part of this Act applies in any day or in any week respectively in order to render payable any daily or weekly rate proposed by the Board, to specify the number of hours of employment by his employer after which any overtime payment proposed is to be payable, and generally to make such provision as may be necessary for specifying

A.D. 1938. the work in respect of which any remuneration proposed is to be payable and for enabling the remuneration payable to any worker to be ascertained.

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PART I.
—*cont.*

(4) In framing proposals for fixing remuneration under this Part of this Act in respect of any work, the Board shall take into consideration any decision of a joint industrial council, conciliation board or other similar body relating to the remuneration of workers employed on road haulage work which may be brought to the notice of the Board.

(5) The Central Board shall have power to refer any matter which the Board thinks fit to an area board for the report of that board, and shall also have power to delegate to any committee of the Central Board or to an area board any of the functions of the Central Board under this Act except the power of submitting proposals for fixing remuneration.

(6) The Central Board and every area board shall have power to make or assist in making arrangements for the settlement of disputes or differences between road haulage workers employed on work to which this Part of this Act applies and their employers, and to promote the voluntary organisation of such employers and workers.

Submission
of proposals
and making
of road haul-
age wages
orders.

3.—(1) When the provisions of the Second Schedule to this Act have been complied with with respect to any proposals of the Central Board, the Board may submit the proposals as settled by it to the Minister, and upon the receipt thereof the Minister shall, unless he considers it necessary to refer the proposals back to the Central Board, as soon as may be make an order (in this Act referred to as a "road haulage wages order") giving effect to the proposals.

(2) If the Minister refers back to the Central Board any proposals submitted to him, the Board shall reconsider them having regard to any observations made by the Minister, and may amend the proposals and may re-submit them to the Minister.

(3) Upon any proposals being re-submitted to the Minister under the last foregoing subsection, he may, if in his opinion any amendments made by the Central Board do not effect important alterations in the character

of the proposals originally submitted to him, make the road haulage wages order, but if in the Minister's opinion the amendments do effect such important alterations as aforesaid, the Minister shall remit the amended proposals to the Central Board with the direction that the like notice of the amended proposals is to be given as in the case of fresh proposals, and in that case the provisions of the Second Schedule to this Act as to notices and objections and the provisions of paragraph 5 of the said Schedule shall apply thereto accordingly.

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PART I.
—cont.

(4) As soon as the Minister has made a road haulage wages order, he shall give notice of the making thereof to the Central Board, and that Board shall give such notice of the order and of the contents thereof as may be prescribed for the purpose of informing, so far as practicable, all persons who will be thereby affected, and the remuneration specified in the order (hereinafter referred to as "statutory remuneration") shall on such date as may be provided by the order come into force as between all workers for whom such remuneration is thereby fixed and their employers.

(5) The Central Board may make proposals for the amendment or cancellation of any road haulage wages order in force under this Act, and the provisions of this Act shall apply in relation to any such proposals as they apply in relation to original proposals.

PART II.

PROVISIONS WITH RESPECT TO THE REMUNERATION OF WORKERS EMPLOYED BY PRIVATE CARRIERS IN CONNECTION WITH THE MECHANICAL TRANSPORT OF GOODS BY ROAD.

4.—(1) If, in the case of any road haulage worker employed on work to which this Part of this Act applies, he, or a trade union of which he is a member, or a trade union which in the opinion of the Minister represents a substantial number of workers employed in road haulage work, considers that the remuneration paid to him in respect of that work is unfair, the worker or trade union may, in the prescribed manner, make an application to the Minister requesting that the matter be referred under this Part of this Act for settlement.

Power to
refer ques-
tions as to
unfair
wages.

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PART II.
—cont.

(2) The work to which this Part of this Act applies is road haulage work in connection with any goods vehicle specified in a C licence granted under the Road and Rail Traffic Act, 1933 :

Provided that this Part of this Act shall not apply to work for which a minimum rate of wages has been fixed by or under any other enactment.

(3) For the purposes of this Part of this Act, the remuneration paid by an employer to a worker in respect of any work shall not be deemed to be unfair if either—

- (a) it is equivalent to that which would have been payable under any road haulage wages order in respect of that work if the work had been work to which Part I of this Act applies; or
- (b) it is in accordance with any agreement in force made between the employer or any organisation of employers of which he is a member and any trade union, being an agreement regulating the remuneration in respect of that work of workers employed in the same trade or industry as the worker; or
- (c) it is equivalent to the remuneration payable in respect of that work to similar workers by other employers in the district engaged in the same trade or industry as the employer, in pursuance of any agreement made between an organisation of employers which represents a substantial number of employers in that trade or industry and any trade union, being an agreement regulating the remuneration in respect of similar work of workers employed in that trade or industry; or
- (d) it is equivalent to the remuneration payable in respect of that work to similar workers by employers in the district engaged in the same trade or industry as the employer, in pursuance of any decision of a joint industrial council, conciliation board, or other similar body, regulating the remuneration in respect of similar work of workers employed in that trade or industry; or
- (e) it is equivalent to the remuneration which, in accordance with a decision of the Industrial

Court given upon a reference to that Court under this Part of this Act, is payable in respect of that work to a worker employed by some other employer in the district engaged in the same trade or industry as the employer.

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PART II.
—cont.

(4) Where an application is made to the Minister under subsection (1) of this section, then, unless he is satisfied that the complaint is frivolous or vexatious, the Minister shall, if the application is not withdrawn after representations have been made by him to the employer of the worker by or on whose behalf it was made, refer the matter under this Part of this Act to the Industrial Court for settlement :

Provided that, if in the trade or industry in which the employer is engaged or any branch thereof, arrangements exist for the settlement of disputes by conciliation or arbitration, made in pursuance of an agreement to which the parties are organisations of employers and trade unions which, in the opinion of the Minister, are representative respectively of substantial proportions of the employers and workers engaged or employed in that trade or industry, then, unless the employer is not a member of any of those organisations, the Minister shall refer the matter for settlement in accordance with the arrangements and shall not refer it for settlement by the Industrial Court, except in the event of his being requested so to do by both parties to the agreement after there has been a failure to obtain a settlement by means of the arrangements made in pursuance of the agreement.

(5) Where, upon an application made to him, a matter is to be referred by the Minister for settlement in accordance with the provisions of the last foregoing subsection, the matter shall be so referred within one month from the date on which the application was received by the Minister, unless in his opinion the special circumstances of the case make it necessary or desirable to postpone the reference of the matter.

(6) Nothing in this Act shall affect the power of the Minister to refer trade disputes to the Industrial Court under the Industrial Courts Act, 1919, and the provisions of this Act relating to references to that Court, to proceedings upon such a reference, to the powers of the Court upon such a reference, and to the

9 & 10
Geo. 5. c. 69.

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PART II.
—cont.

Power of
Industrial
Court to fix
statutory
remunera-
tion.

5.—(1) If in any proceedings upon a reference to the Industrial Court under this Part of this Act the Court finds that the remuneration paid to the worker in respect of the road haulage work on which he was employed was unfair, it shall be the duty of the Court to fix the remuneration to be paid in respect of that work, and in the provisions of this Act hereinafter contained references to “statutory remuneration” shall be construed as including references to remuneration so fixed.

(2) The power of the Industrial Court under this Part of this Act to fix statutory remuneration to be paid to any workers shall include power to fix holiday remuneration and to require such remuneration to be paid to them in addition to remuneration payable for the road haulage work actually done by them.

(3) In determining whether the remuneration paid to a worker in respect of the work on which he was employed was unfair, and in fixing any statutory remuneration, the Industrial Court shall have regard not only to the provisions of subsection (3) of the last foregoing section but also to any agreements brought to its notice which are in force between organisations of employers and trade unions and regulate the remuneration of workers engaged on work similar to that of the worker in trades or industries which in the opinion of the Court are comparable to the trade or industry in which the worker is employed, to the general level of remuneration paid to workers in that trade or industry other than road haulage workers, and to such further circumstances as the Court considers relevant.

(4) In fixing any statutory remuneration, the Industrial Court shall specify the nature of the work in respect of which the remuneration is to be payable, and if a daily or weekly rate is fixed, the time for which the worker must be employed on road haulage work in any day or in any week respectively in order to render the daily or the weekly rate payable, and if any overtime payment is fixed, the number of hours of employment by his employer after which the overtime payment is to be payable to the worker, and the order shall contain such further provisions as may be necessary for defining the

employment in respect of which the statutory remuneration is to be payable and for enabling the remuneration payable to the worker to be ascertained.

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PART II.
—cont.

(5) The Minister may make regulations as to the publication of decisions of the Industrial Court upon references under this Part of this Act.

(6) The statutory remuneration fixed by the Industrial Court in respect of any work upon a reference to the Court under this Part of this Act shall, as between the employer of the worker by whom or on whose behalf application for the reference was made and all workers employed by that employer on that work, be in force for a period of three years from the beginning of the week next after the date on which the statutory remuneration was so fixed, and as between that employer and the worker by whom or on whose behalf application for the reference was made the statutory remuneration shall also be deemed to have been in force for such earlier period not exceeding six months as the Court may direct :

Provided that, while statutory remuneration is in force under this section as between an employer and any worker, the employer or an organisation of employers of which he is a member or any such worker or a trade union of which such a worker is a member may, in the prescribed manner, make an application to the Minister for a review of the remuneration and thereupon the Minister shall refer the matter to the Industrial Court, and that Court may proceed thereon in like manner in all respects as in the case of an original reference, so, however, that no application for a review of any statutory remuneration fixed by the Court shall be made within three months after the remuneration has been so fixed or has last been reviewed by that Court.

(7) In any proceedings upon a reference to the Industrial Court under this Part of this Act, any organisation of employers or any trade union appearing to the Court to have an interest in the question referred to the Court shall have a right to attend and be heard.

PART III.

GENERAL.

6.—(1) Where under this Act statutory remuneration is or is deemed to have been in force in respect of any work during any period as between an employer and a

Duty to pay
statutory
remunera-
tion.

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worker, the employer shall in respect of that work during that period pay remuneration to the worker not less than the statutory remuneration clear of all deductions, and if the contract between the employer and the worker provides for the payment of less remuneration in respect of that work, it shall have effect as respects the said period as if for that less remuneration there were substituted the statutory remuneration clear of all deductions.

(2) For the purposes of the last foregoing subsection, the net remuneration obtainable by a worker in respect of any work after allowing for his necessary expenditure, if any, in connection with the work shall be deemed to be the remuneration paid to him and the expression “deductions” includes deductions in respect of any matter whatsoever except deductions under the Unemployment Insurance Act, 1935, the National Health Insurance Act, 1936, or any enactment authorising deductions to be made from the remuneration of a worker in respect of contributions to any superannuation or other provident fund, and except any deduction or payment authorised to be made under section one, section two or section three of the Truck Act, 1896.

25 & 26

Geo. 5. c. 8.

26 Geo. 5. &

1 Edw. 8.

c. 32.

59 & 60 Vict.

c. 44.

(3) Where the remuneration paid by an employer to a worker includes remuneration in respect of other work as well as in respect of road haulage work, the amount of the remuneration which is attributable to road haulage work shall, if not apparent from the terms of the contract between the employer and the worker, be deemed to be an amount bearing the same proportion to the total remuneration as the time spent on road haulage work during the period in respect of which the total remuneration is payable bears to the whole of the time in respect of which that remuneration is payable.

**Remedies
for default.**

7.—(1) Any person who, in contravention of the provisions of this Act, fails to pay remuneration not less than the statutory remuneration, shall be liable on summary conviction to a fine not exceeding twenty pounds for each offence, and, if notice of intention so to do has been served with the summons, warrant or complaint, evidence may be given of any like contravention on the part of the employer in respect of any period during the two years immediately preceding the date of the offence, and on proof of the failure the court may order the

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—cont.

employer to pay such sum as is found by the court to represent the difference between the amount which ought to have been paid during that period to the worker by way of remuneration, if the provisions of this Act had been complied with, and the amount actually so paid.

(2) Where an offence for which an employer is under this section liable to a fine has in fact been committed by some agent of the employer or other person, that agent or other person shall be liable to be prosecuted for the offence in the same manner as if he were the employer, and either together with, or before or after the conviction of, the employer, and shall be liable on conviction to the same punishment as that to which the employer is liable.

(3) Where an employer who is charged with an offence under this section proves to the satisfaction of the court that he has used due diligence to secure compliance with the provisions of this Act, and that the offence was in fact committed by his agent or some other person without his consent, or connivance, he shall, in the event of the conviction of that agent or other person for the offence, be exempt from conviction for the offence.

(4) Where the holder of a licence granted under Part I of the Road and Rail Traffic Act, 1933, is convicted of an offence under this section, the licensing authority by whom the licence was granted may exercise the like powers under section thirteen of the said Act (which relates to the revocation and suspension of licences) as would be exercisable by that authority if a condition of the licence had not been complied with.

(5) Any officer appointed by the Minister and any officer of any government department assisting in carrying this Act into effect may institute proceedings for an offence under this section and may, although not of counsel or a solicitor, conduct any such proceedings.

(6) Any officer authorised in that behalf by special or general directions of the Minister may, if it appears to him that a sum is due from an employer to a worker on account of the payment of remuneration to him less than the statutory remuneration in force in respect of the work, institute on behalf of or in the name of the worker civil proceedings for the recovery of that sum, and in any such proceedings the court may make an order

A.D. 1938. for the payment of costs by the officer as if he were a party to the proceedings.

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PART III.
—cont.

(7) The powers given by this section for the recovery of sums due from an employer to a worker shall not be in derogation of any right of the worker to recover such sums by civil proceedings.

(8) If any person is convicted under Part I of the Road and Rail Traffic Act, 1933, of using a goods vehicle for a purpose for which an A licence, a B licence or a C licence is required, otherwise than under such a licence, any road haulage work performed by a road haulage worker in connection with the vehicle while it was being so used shall be deemed for the purposes of this Act to have been road haulage work in connection with a goods vehicle specified in an A licence, a B licence or a C licence granted under that Act as the case may be, and the provisions of this and of the last foregoing section shall apply accordingly.

Proof of
statutory
remunera-
tion fixed
by Indus-
trial Court.

8.—(1) In any legal proceedings a certificate signed by the secretary of the Industrial Court or other officer having the custody of the records of that Court certifying that the Court has fixed statutory remuneration and setting out the effect, extent and duration of the statutory remuneration so fixed shall be conclusive evidence of the facts stated therein.

(2) A certificate purporting to be signed by the secretary of the Industrial Court or such other officer as aforesaid shall be received in evidence and be deemed to be so signed without further proof unless the contrary is shown.

Persons
working
under
arrange-
ments to be
deemed
to be
employed.

9.—(1) Where any person who is the holder of a licence granted under Part I of the Road and Rail Traffic Act, 1933, or who carries on the business of a goods transport clearing house makes by way of trade an arrangement expressed or implied with any worker in pursuance of which the worker performs any work with respect to which statutory remuneration would, if the worker were employed by that person, be in force under this Act, the worker shall be deemed for the purposes of this Act to be employed by that person and references in this Act to an employer shall be construed accordingly :

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—cont.

Provided that, where the only work performed by the worker in pursuance of the arrangement is work in connection with a goods vehicle specified in a licence of which the worker is the holder, being an A licence other than a licence granted under subsection (1) of section seven of the Road and Rail Traffic Act, 1933, or a B licence, then—

- (a) in a case where the arrangement was made by way of sub-contract with the worker for the purpose of enabling the employer to execute a contract for the transport of goods entered into by him, the employer shall be deemed not to have contravened the provisions of section six of this Act if he proves that the sum paid to the worker in respect of the work performed by him was not more than ten per cent. less than the amount payable to the employer under his contract in respect of that work;
- (b) in a case where the person by whom the arrangement with the worker was made is neither the holder of an A licence or a B licence nor a person who carries on the business of a goods transport clearing house, and the arrangement was made by him only for the carriage of goods for or in connection with any trade or business carried on by him, the foregoing provisions of this section shall not apply.

(2) In this section the expression “business of a goods transport clearing house” means the business of arranging for the mechanical transport of goods by road.

10.—(1) When statutory remuneration is in force under this Act as between an employer and any workers employed by him, it shall be the duty of the employer to keep such records as are necessary to show that the provisions of this Act are being complied with as respects those workers.

Duty of
employers
to keep
records.

(2) The Minister may make regulations prescribing the form in which such records as aforesaid are to be kept by an employer, and the period for which any such records are to be retained by him, and requiring employers to post in the prescribed manner such notices as may be prescribed for the purpose of informing persons employed by them of proposals to fix remuneration under this Act and of any remuneration so fixed.

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(3) If any employer fails to comply with the requirements of this section or of any regulations made thereunder, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(4) Before making any regulations prescribing the form of the records to be kept under this section or the periods for which such records are to be retained, the Minister shall consult, in the case of regulations as to records of work to which Part I of this Act applies, the Central Board, and, in the case of regulations as to records of work to which Part II of this Act applies, such organisations of employers and workers as he thinks proper.

Appoint-
ment and
powers of
officers.

11.—(1) The Minister, with the approval of the Treasury as to numbers and salaries, may appoint such officers as he thinks necessary for the purpose of securing the proper observance of this Act and any such officer shall have power—

- (a) to require the production of any licence or certificate granted under the Road and Rail Traffic Act, 1933, and of any records kept in pursuance of section sixteen of that Act or in pursuance of this Act, and to examine and copy any part of them;
- (b) to require any person whom he has reasonable cause to believe to be, or to have been, employed on work with respect to which statutory remuneration is or was in force under this Act as between him and his employer, or to require his employer or any agent of his employer, to give such information as it is in his power to give with respect to that employment and the remuneration paid in respect thereof, and to sign a written statement setting out such information; and
- (c) at all reasonable times to enter any premises or place at or in connection with which the officer has reasonable cause to believe road haulage workers to be employed on work in respect of which statutory remuneration is in force under this Act.

(2) Every officer appointed by the Minister under this section shall be furnished by the Minister with a certificate of his appointment, and when acting under

or exercising any power conferred upon him by this Act shall, if so required by any person affected, produce the certificate to him.

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—cont.

(3) Any person who obstructs any such officer as aforesaid in the exercise of any power conferred by this section, or refuses to comply with any requirement of such an officer made in the exercise of any such power, shall be liable on summary conviction to a fine not exceeding twenty pounds.

12. If any person makes or causes to be made or knowingly allows to be made any entry in a record required to be kept under this Act, which he knows to be false in a material particular, or for purposes connected with this Act produces or furnishes or causes or knowingly allows to be produced or furnished any record or information which he knows to be false in a material particular, he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

Penalty for altering records, producing false records or giving false information.

13.—(1) All fines imposed in respect of offences under this Act shall be dealt with in the manner specified in section one hundred and seventeen of the Road Traffic Act, 1930, in relation to the fines therein mentioned, and the provisions of that section shall apply accordingly.

Financial provisions.
20 & 21
Geo. 5. c. 43.

(2) The expenses of the Minister in carrying this Act into effect and any expenses authorised by the Minister with the consent of the Treasury to be incurred by the Central Board or by any area board shall be defrayed out of moneys provided by Parliament.

14. All regulations made under this Act shall be laid as soon as may be before Parliament, and if either House within the next twenty-eight days on which that House has sat after any such regulation has been laid before it resolves that the regulation be annulled, it shall thenceforth be void, but without prejudice to the validity of anything done in the meantime thereunder or to the making of a new regulation.

Regulations to be laid before Parliament.

15.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Interpretation.

“ A licence ”, “ B licence ”, “ C licence ”, “ goods vehicle ”, “ motor vehicle ”, and “ trailer ”,

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—cont.

have the same meanings, respectively, as in Part I of the Road and Rail Traffic Act, 1933;

“ Prescribed ” means prescribed by regulations made by the Minister under this Act;

“ Railway Trade Unions ” means the National Union of Railwaymen, the Associated Society of Locomotive Engineers and Firemen and the Railway Clerks’ Association;

“ Road haulage work ” and “ Road haulage worker ” have respectively the meanings assigned to them by the Third Schedule to this Act;

“ Trade Union ” has the meaning assigned to it by section two of the Trade Union Act, 1913, except that it does not include a combination of which one of the principal objects is the regulation of relations between masters and masters.

2 & 3 Geo. 5.
c. 30.

(2) In the case of licences authorising the use of vehicles in accordance with the provisions of paragraph (b) or paragraph (c) of subsection (6) of section two of the Road and Rail Traffic Act, 1933, the following provisions shall have effect, that is to say, any goods vehicle, being a motor vehicle, from time to time in the possession of the holder of the licence under an agreement for hire or loan, and any goods vehicle, being a trailer, for the time being belonging to the holder of the licence or in his possession under an agreement for hire purchase, hire, or loan shall, whether or not in excess of the maximum number specified in the licence, be deemed for the purposes of this Act to be specified in an A licence or a B licence :

Provided that—

- (a) where the licence held is a C licence and the holder thereof does not hold another such licence being an A licence or a B licence, all such goods vehicles as aforesaid shall be deemed for the purposes of this Act to be specified in a C licence;
- (b) where any of such licences held is an A licence or a B licence, if the holder proves with respect to any of such goods vehicles as

aforesaid that in any week it was not used for any purpose for which an A licence or a B licence is required under the said Act, road haulage work done in connection with the vehicle during that week shall be deemed to be work to which Part II of this Act applies;

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- (c) whatever classes of such licences are held, if the holder proves with respect to any such goods vehicle as aforesaid that in any week it was not used for any purpose for which any licence is required under Part I of the said Act, work done in connection with the vehicle during that week shall be deemed to be work to which neither Part I nor Part II of this Act applies.

(3) References in this Act to any enactment shall, except where the context otherwise requires, be construed as references to that enactment as amended by any subsequent enactment including this Act.

(4) Any power to make an order under this Act shall be construed as including power to vary or revoke the order by a subsequent order.

16.—(1) The Scottish Road Haulage Area Wages Board may at any time make recommendations to the Central Board as to the remuneration to be paid to workers in Scotland to whom Part I of this Act applies, and the Central Board shall consider any such recommendations.

Special provisions as to Scotland.

(2) Before transmitting, in accordance with the provisions of subsection (1) of section two of this Act, a draft of any proposals affecting Scotland, the Board shall give to the Scottish Road Haulage Area Wages Board not less than twenty-one days' notice of its intention to do so, and shall consider any recommendations made to the Board under the last foregoing subsection within those twenty-one days.

(3) Subsection (5) of section seven of this Act shall not apply in relation to proceedings in Scotland.

17.—(1) This Act may be cited as the Road Haulage Wages Act, 1938.

Short title, extent, repeal and commencement.

- (2) This Act shall not extend to Northern Ireland.

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PART III.—*cont.*

(3) Subsection (2) of section eight and subsection (2) of section thirty-two of the Road and Rail Traffic Act, 1933, are hereby repealed as from the date on which Part II of this Act comes into operation.

(4) The Minister shall by order bring Part II of this Act into operation on the date on which the first road haulage wages order comes into force.

SCHEDULES.

A.D. 1938.

FIRST SCHEDULE.

Section 1.

CONSTITUTION AND PROCEEDINGS OF ROAD HAULAGE
WAGES BOARDS.*Constitution of Central Board.*

1.—(1) The Central Board shall consist of the following persons appointed by the Minister, that is to say,—

- (a) not less than twelve nor more than eighteen representative members;
- (b) representative members appointed by the Minister from among the members of the area boards; and
- (c) not less than three nor more than five independent members of whom the Minister shall appoint one as chairman and may appoint another to act as deputy chairman in the absence of the chairman.

(2) Of the representative members other than those appointed from among members of the area boards, one-half shall be persons who in the opinion of the Minister represent employers of workers to whom Part I of this Act applies and one-half shall be persons who in his opinion represent such workers, and before determining the number of such representative members and before appointing any such members the Minister shall consult any organisations appearing to him to represent such employers and workers respectively.

(3) Of the representative members appointed from among the members of the area boards two shall be appointed from each area board in England and four from the Scottish Road Haulage Area Wages Board, and of the number so appointed from each area board one-half shall be appointed to represent employers and one-half shall be appointed to represent workers. For every member appointed under this paragraph the Minister shall appoint a substitute member who may be deputed by the member to act for him in the event of his unavoidable absence; and a substitute member while so deputed shall be deemed for all purposes to be a member of the Board. Before appointing any such member or substitute member, the Minister shall consult the area board concerned.

(4) In appointing members and substitute members under either of the last two foregoing sub-paragraphs, the Minister

A.D. 1938. shall have regard to the types of trades and businesses affected, the numbers of vehicles connected therewith, and the various circumstances in which the vehicles are operated.

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1st Sch.
—cont.

(5) The independent members shall be persons who in the opinion of the Minister are not connected with the transport of goods.

Constitution of Area Boards.

2.—(1) Every area board shall consist of such number of persons appointed by the Minister as he thinks fit having regard to the circumstances affecting the area, including the size of the area and the number of goods vehicles licensed therein, so, however, that one-half of the number of members shall be persons who in the opinion of the Minister represent such employers as aforesaid in the area and the other half shall be persons who in his opinion represent such workers as aforesaid in the area, and before determining the number of members of which any area board is to consist and before appointing any member, the Minister shall consult with organisations appearing to him to represent such employers and workers respectively in the area.

(2) Every area board shall elect one of its members to be chairman of the area board.

(3) Any independent member of the Central Board shall, if requested by that Board to do so, have a right to attend any meeting of an area board and may speak but shall not vote thereat.

Supplementary Provisions as to Constitution of Boards.

3. The Minister may appoint a secretary to the Central Board and to any area board.

4. There may be paid to independent members of the Central Board such fees, and to members of the Central Board and of any area board such travelling and other allowances, as the Minister may, with the consent of the Treasury, determine, and all such fees and allowances shall be defrayed as part of the expenses of the Minister in carrying this Act into effect.

5. Any person appointed to be a member or substitute member of the Central Board or a member of an area board shall hold office for such term and on such conditions as to retirement as may be determined by the Minister.

6. The proceedings of the Central Board or of any area board shall not be invalidated by reason of any vacancy in the board or by any defect in the appointment of any member or substitute member.

7. Subject as hereinafter provided, a quorum shall not be formed at a meeting of the Central Board or of an area board unless there are present at least one-third of the whole number of members appointed to represent employers and at least one-third of the whole number of members appointed to represent workers, and in the case of a meeting of the Central Board at least one of the independent members :

A.D. 1938

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1ST SCH.
—cont.

Provided that, if, at the end of half-an-hour after the time appointed for any such meeting, the quorum required by the foregoing provisions of this paragraph is not formed, or if thereafter such a quorum ceases to be present, the meeting shall, in accordance with regulations made by the Minister, stand adjourned to a future day, and at the adjourned meeting a quorum shall be formed if at least one-third of the whole number of members of the board, exclusive of the independent members, is present and, in the case of the Central Board, at least one of the independent members is also present.

8. The Minister may make regulations as to the meetings and proceedings of the Central Board or of any area board including the method of voting and, subject to the last foregoing paragraph, the quorum.

SECOND SCHEDULE.

Section 2, 3.

PROCEDURE IN RELATION TO PROPOSALS OF CENTRAL BOARD FOR FIXING REMUNERATION.

1. Upon receiving from the Central Board a draft of any proposals for the fixing of remuneration or for the amendment or cancellation of any road haulage wages order, an area board shall consider the proposals and within the period of twenty-eight days next after the receipt thereof shall report thereon to the Central Board.

2. After considering any report sent to it by an area board within the said period of twenty-eight days the Central Board may, if it thinks fit, amend the proposals, and shall give such notice of the proposals as may be prescribed for the purpose of informing, so far as practicable, all persons who will be thereby affected, and the notice shall specify the place where copies of the proposals may be obtained and of the time (which shall not be less than twenty-one days) within which any objection made with respect to the proposals by or on behalf of the persons affected must be sent to the Central Board.

3. Every objection must be in writing and state the specific grounds of objection, and the omissions, additions or other modifications asked for.

A.D. 1938.

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2ND SCH.
—cont.

4. The Central Board shall consider any objection made by or on behalf of any persons appearing to the Board to be affected which is sent to the Board within the required time, and shall furnish copies of all such objections, except any which appear to the Board to be frivolous, to the area board for every area appearing to be affected by the objection, and the area board shall report thereon to the Central Board within the period of twenty-one days next after the receipt of the copies aforesaid.

5. After considering any report sent to it by an area board within the last mentioned period of twenty-one days, the Central Board may amend the proposals, but if in the opinion of the Central Board any such amendments effect important alterations in the proposals of which notice was given under paragraph 2 of this Schedule, the Board shall not submit the proposals to the Minister unless an opportunity has been given to the area boards to make representations with respect thereto.

Section 15.

THIRD SCHEDULE.

DEFINITIONS OF ROAD HAULAGE WORKER AND
ROAD HAULAGE WORK.

1. For the purposes of this Act, the expression "road haulage worker" means a person who is employed on all or any of the following work, that is to say:—

- (i) driving or assisting in the driving or control of a goods vehicle;
- (ii) collecting or loading goods to be carried in or on the vehicle;
- (iii) attending to goods while so carried;
- (iv) unloading or delivering goods after being so carried;
- (v) acting as attendant to the vehicle;

and who is required to travel on or accompany the vehicle for the purpose of doing any such work; and, subject to the provisions hereinafter contained in this Schedule, the expression "road haulage work" shall be construed accordingly:

Provided that a person who is employed in loading goods to be carried in or on a goods vehicle, or in unloading goods after being so carried, and who is required to travel on or accompany the vehicle partly for that purpose, shall not be deemed to be a road haulage worker by reason only of that employment, if the main purpose for which he is required to travel on or accompany

the vehicle is that of executing work other than road haulage work after its arrival at his destination.

A.D. 1938.

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3RD SCH.
—cont.

2. For the purpose of determining the road haulage work for which statutory remuneration may be fixed under this Act, a road haulage worker shall be deemed to be employed on road haulage work while employed on any work mentioned in the last foregoing paragraph and also during any time during which he is—

- (a) doing any work incidental to work so mentioned;
- (b) travelling in or on or accompanying a goods vehicle in connection with his employment on work so mentioned;
- (c) under the orders or at the disposal of his employer while waiting in connection with his employment on work so mentioned;
- (d) waiting (whether overnight or otherwise) in accordance with the instructions of his employer as a necessary consequence of his employment on any work so mentioned.

3. The Minister may, after consultation with the Central Board and with such organisations of employers and workers as he thinks proper, by order modify the foregoing provisions of this Schedule, but no such order shall come into force unless and until it has been approved by a resolution of each House of Parliament.

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FOR

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